

# MUTUAL NON-DISCLOSURE AGREEMENT - COUNTERPARTY REDLINE

Inbound redline received from Globex Ltd - for clause & risk analysis

Inbound redline with non-standard deviations (Singapore governing law, perpetual / 7-year confidentiality, one-sided assignment) for the Clause & Risk agent to flag.

|                    |                                                     |
|--------------------|-----------------------------------------------------|
| <b>Document</b>    | INBOUND counterparty redline                        |
| <b>From</b>        | Globex Ltd ("Discloser")                            |
| <b>To</b>          | Contoso Global, Inc.                                |
| <b>Type</b>        | NDA - proposed changes                              |
| <b>Reviewed by</b> | Clause & Risk agent (Challenge 3)                   |
| <b>Benchmark</b>   | Contoso Standard Clause Library CL-05, CL-08, CL-11 |

## 1. Purpose

The parties will exchange Confidential Information to evaluate a supply arrangement. Scope of "Purpose" is defined narrowly and may not be broadened without Discloser consent.

## 2. Definition of Confidential Information

Expanded to include **residual knowledge retained in unaided memory**, which Discloser asserts remains confidential indefinitely.

## 3. Confidentiality Survival

Confidentiality obligations are **perpetual** for all information designated "trade secret," and survive **seven (7) years** for all other Confidential Information.

## 4. Governing Law

This Agreement is governed by the laws of **Singapore**, with exclusive jurisdiction in the courts of Singapore.

## 5. Assignment

Discloser may **assign this Agreement freely, including on a change of control**; Contoso may not assign without Discloser's prior written consent.

## 6. Injunctive Relief

Discloser is entitled to injunctive relief **without posting bond** and to recover its legal fees for any breach.

## 7. Term

Two (2) year term; either party may terminate on 30 days' notice, but the confidentiality obligations above survive termination.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

**Globex Ltd (Discloser)**

By: \_\_\_\_\_

Name: A. Rivera

Title: General Counsel

Date: \_\_\_\_\_

**Contoso Global, Inc.**

By: \_\_\_\_\_

Name: Authorized Signatory

Title: \_\_\_\_\_

Date: \_\_\_\_\_

Contoso Global, Inc. - CONFIDENTIAL - INBOUND counterparty redline - Fictitious document for the CLM microhack.